The court may grant a divorce for the following reasons:

Sec. 6.001. INSUPPORTABILITY **BY MUTUAL AGREEMENT.** On the petition **and written agreement** of ~~either~~ **both** ~~party~~ **parties** to a marriage, the court may grant a divorce without regard to fault if the marriage has become insupportable. ~~because of discord or conflict of personalities that destroys the legitimate ends of the marital relationship and prevents any reasonable expectation of reconciliation.~~

Sec. 6.002. UNILATERAL INSUPPORTABILITY. A divorce may be granted based on the ground of insupportability when initiated by either party to a marriage that was self-solemnized or solemnized by a secular authority. A marriage that was solemnized in a religious rite or conducted by a religious minister or authority is not eligible for a divorce under this cause of action.

Sec. 6.003. CRUELTY. **Cruelty is defined as the infliction of grievous bodily injury or grievous mental suffering upon the other by one party to the marriage.** ~~The court may grant a divorce in favor of one spouse if the other spouse is guilty of cruel treatment toward the complaining spouse of a nature that renders further living together insupportable.~~

Sec. 6.004. ADULTERY. **Adultery is defined as the voluntary sexual intercourse of a married person with another person whom he or she is not married to.** ~~The court may grant a divorce in favor of one spouse if the other spouse has committed adultery.~~

Sec. 6.005. CONVICTION OF FELONY.

(a) The court may grant a divorce in favor of one spouse if during the marriage the other spouse:

(1) has been convicted of a felony;

(2) has been imprisoned for at least one year in the Texas Department of Criminal Justice, a federal penitentiary, or the penitentiary of another state; and

(3) has not been pardoned.

(b) The court may not grant a divorce under this section against a spouse who was convicted on the testimony of the other spouse.

Sec. 6.006. ABANDONMENT. **Abandonment may be defined as:** ~~The court may grant a divorce in favor of one spouse if the other spouse:~~

(1) **The refusal of either party to dwell in the same household;** ~~left the complaining spouse with the intention of abandonment; and~~

(2) **Desertion by cruelty or threats causing departure of one spouse.** ~~remained away for at least one year.~~

(3) **Desertion by departure during absence of spouse induced by fraud.**

(4) **Desertion by refusal of reconciliation after separation.**

~~Sec. 6.007. LIVING APART. The court may grant a divorce in favor of either spouse if the spouses have lived apart without cohabitation for at least three years.~~

Sec. 6.008. CONFINEMENT IN MENTAL HOSPITAL. The court may grant a divorce in favor of one spouse if at the time the suit is filed:

(1) the other spouse has been confined in a state mental hospital or private mental hospital, as defined in Section 571.003, Health and Safety Code, in this state or another state for at least three years; and

(2) it appears that the hospitalized spouse's mental disorder is of such a degree and nature that adjustment is unlikely or that, if adjustment occurs, a relapse is probable.

Sec. 6.009. CONDITIONS BARRING DIVORCE.

(a) Neither party to a marriage shall have the right to initiate divorce during the wife's pregnancy and in the course of two years after the birth of the child.

(b) Neither party to a marriage shall be granted a divorce until such time as both parties have mutually agreed in writing on the terms and conditions of child custody, and the manner in which future modifications will be made.